Ali Khumeni vs State (Government Nct Of Delhi) on 9 July, 2025

Author: Amit Sharma

Bench: Amit Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 256/2025
ALI KHUMENI .....Petitio
Through: Mr. Sulaiman Mohd. Khan, Ms.
Khan, Mr. Bhanu Malhotra, Mr
Gopeshwar Singh Chandel, Mr.
Abdul Bari Khan, Mr. Aditya
Chaudhary and Ms.
Chaudhary, Advocates.
versus
STATE (GOVERNMENT NCT OF DELHI) .....Respond

Through: Ms
wi
Mr
Mr

CORAM:
HON'BLE MR. JUSTICE AMIT SHARMA
ORDER

% 09.07.2025

1. This hearing has been done through hybrid mode.

2. The present application under Section 483 read with Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023 seeks regular bail in case FIR No. 317/2024, under Sections 342/370/420/204/120B of the IPC and Section 10/24 of the Emigration Act, 1983, registered at P.S. Special Cell.

3. The case of the prosecution as per the status report dated 25.02.2025, authored by Sh. Manoj Kumar, Assistant Commissioner of Police, Cyber Crime Unit, IFSO, Special Cell, New Delhi as under:

> "Most respectfully it is showeth that through this petition the petitioner has prayed this Hon'ble High Court to grant bail u/s 483 B.N.S.S in FIR No. 317/24 dated 24.07.2024 U/S 342/370/420/204/120B IPC and 10/24 Emigration Act Police Station Special Cell.
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> This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 10/07/2025 at 22:01:25 It is humbly submitted that the facts of the case are that:- In the intervening night of 23/27 /07 /2024 a complaint of complainant Ashwani Kumar and others having reference No. 1224/ACP/CI/Spl Cell Dt 18.07.2024 was received from the Counter Intelligence Office Special Cell. The same was taken up for enquiry vide Reference No. 375/24 DCP/IFSO/Special Cell Dt 23.07.2024. In the said complaint complainant Sh Ashwani Kumar has alleged that he along with other associates were taken to Cambodia by Ali Khumeni, Sahil Sharma, Mandeep Kaur, Sahil, Chetan, Zoyii (telegram handle @zoyii786), Chinese national Zhong Kang using telegram handle @Zhongkang0526 and kingpin a Chinese national (using telegram handle @kz6888) by deception and kept them in captivity and then forced us to assist them in cybercrime targeting Indian Citizens.

He further alleged that this gang involved in human trafficking of young people from India by luring them with false promise of good and legitimate job in foreign countries and then to force them to be part of cybercrime being perpetrated from Cambodia at very big level targeting/trapping Indian citizens through false profiles and deceitful schemes to cheat them.

He further stated that he along with several other people from India fell prey to their trap in hope of getting good and legitimate job in Dubai in March 2024. He was lured by one their agent namely Ali Khumeni having Indian mobile number 9634557450 who introduced himself as recruiter for several foreign companies and promise him for a job in Dubai in lieu of Rs. 40,000/-. After long conversation and chats on whatsapp, He agreed for a job of data entry in Dubai. Recruiter/ Agent Ali Khumeni sent his ticket for Dubai for 27th March 2024 by Indigo flight No. 6E1249. On reaching Dubai, He was given 7 days training in a big call centre being run in Cedar Park, DIP (Dubai Investment Park) in Dubai by a Chinese national. They were directed not to leave the campus or to talk any person outside from the campus without the permission of employer. They realized that it was a call centre for cyber fraud targeting India nationals by calling through mobile numbers of UK for which he and some other persons shown hesitation in calling with fake Ids, they were trashed and threatened but in meanwhile there was some raid their call centre so they stopped work there and scared us that if they go outside, may be arrested in Dubai.

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The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 10/07/2025 at 22:01:25 Further he stated that they moved us from Dubai to Bangkok, Thailand on 02.05.24. They were taken in company's vehicle for six hours near Cambodia border where our passports were taken from them which were

never return to us. They were got border crossed by foot and then taken to a big complex in Krong Poi Pet, situated in Cambodia near to Thailand border just five minutes away by taxi. There were almost 600 Indian working in two companies in the same complex who were being work done forcefully against their wish and in very harsh environment. Majority of the persons working there wanted to come to their home but were too scared to escape from there. The call centre is used for calling Indian citizens by Indians working there by using mobile numbers of UK and fake profile of European girls to lure and trap the Indians to invest in fake schemes to cheat them. They keep creating several telegram groups to pass instructions to everyone in a very systematic way. They snatch away passport of all the callers and keep them under continuous monitoring through guards for not to let anyone out of complex without their prior permission. They keep the inmates as slave under fear and grave threat to harm them if any one even tries to escape from there. If anyone try to escape and caught by them, he is beaten and thrashed in presence of all callers to keep them under fear.

He further stated that he and his two friends namely Raman S/o Sh. Balram R/o H.No. 26/13, Yaseen road, Amritsar, Punjab and Binder Sodhi S/o Sh. Husan Lal Sodhi R/o H.No. 81/1000, Ram Nagar, Jalandhar, Punjab were very much disgusted from the illegal activities of cheating Indian so they planned to escape from there at any cost. They used to get 3-4 hours outing once in a month for purchasing necessary items so when they got turn for outing on 15th of July, They took taxi and reached Indian Embassy in Cambodia. They got several threatening messages to harm them and their family members but now they are under protection of India Embassy in Cambodia and expected to leave for India after getting legal paper formalities and having white passport issued with the help of Embassy as our passport were kept by the employer of call centre.

It is also alleged that there are several Indian who are member of the gang who work as HR Manager in the companies being headed by Chinese nationals and work as recruiter in India. They keep moving between Cambodia and India and trap Indian youths for good salaried job in foreign countries and bring them in Cambodia generally via This is a digitally signed order.

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Chetan recruits from Bihar area. There is one girl from Gujrat who has changed her name to Zoyii use mobile number +44 7492319899 and telegram handle @zoyii786 who work as accountant and provide the mule bank accounts to the victims for collecting cheating money.

He also alleged that there is one of top management Chinese whose name is Zhong Kang who use mobile number +44 7475085234 and telegram handle @Zhongkang0526. One Chinese who is head of the gang use mobile number +639602827888 and telegram handle @kz6888. He further stated that one of the recruiters namely Ali Khumeni in India presently for recruitment and expected to come to Cambodia with some newly recruited boys for illegal call centers.

On the said complaint the present case was got registered and investigation was carried out. During investigation on 24.07.2024 accused Ali Khumeni, was interrogated in the case. On interrogation, he confessed his involvement in crime and after coming the sufficient ground of arrest he was arrested. During the same his mobile phone was analyzed and found incriminating evidence in it. During interrogation he disclosed that he has sent/employed 20-25 persons in the alleged fake investment center with the help of agents Abhishek, Shubham Nirvan, Sahil Sharma, Neha, Adnan, Sayed Raza, Mobin, Arvind Jassi.

During police custody remand, his mobile phone was thoroughly examined and some of whatsapp chat held with complainant Sh Ashwani was recovered on his instance. Further whatsapp/telegram Chats held with his other associates'/agents namely Arvind@Jassi, Neha, Shubham Nirvan, Moin Sayeed, Adnan, Abhishek, Sayeed Raza, Sahil Sharma, Guddu were also recovered, in these chats, they are chatting about to This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 10/07/2025 at 22:01:25 sent/employed the Indian Citizen to this center.

During interrogation on the instance of accused Ali Khumeni his passport bearing No. X7884189 was also seized, on which the Visa of Cambodia and Dubai were found affixed and arrival and departure details of Dubai and Combodia was also found. Further, on the instance of accused Ali Khumeni, his Telegram accounts were analyzed and found that the alleged person Ali Khumeni is the members of group in which many Chineese National are also the members of it with Chinesee name and telegram ID, in that groups the copy of passport of Indian Citizen have been shared. The accused person Ali Khumeni also disclosed that he was working in Chinese company as HR which is dedicated to cheat the people of India in the name of fake investment. He has also disclosed that he used to get 300 US Dollar per person in addition of his salary from Chineese Boss.

During the course of further investigation, complainant Sh Ashwani along with other two victims namely Binder Sodhi and Raman who had come to India from the Combodia were examined and their statement u/s 180 BNSS were recorded. Further complainant, Sh Ashwani also provided the whatsapp chat held with present accused Ali K.humeni @ HR Sayed Ali in which Ali Khumeni is facilitating the transportation of complainant Sh Ashwani Kumar to Dubai.

Further another victim namely Binder Sodhi also provided the whatsapp and facebook chat held with another agent/associate Mandeep Kaur in which she is also facilitating in sending the complainant to Camobodia via Bangkok. The victim Binder also stated that Ali Khumeni, Sahil Sharma and Chetan@Chandan works as HR in the Chinese fake investment company and recruits/facilitate the people from India through Indian agents to work in these scam center. During investigation another victim namely Sh Raman also provided the whatsapp chats held with coaccused Mandeep Kaur, Sahil Sharma, Karan @ Charanjeet and Sahil Khatri in which they are talking about sending the complainant to Cambodia via Bangkok for employment purpose.

During investigation, co-accused Sahil Khatri and Charanjeet@ Karan were arrested in the case on 28.12.2024 and presently running in judicial custody. During investigation the search of co-accused Mandeep Kaur, Sahil Sharma, Sayeed Raja@alaik was made but no This is a digitally signed order.

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During the investigation notices to join the investigation were also sent to probable victims whom details were recovered from the mobile phone of accused Ali Khumeni. On the said notice three other victims namely Murtaza Ali, Paiz Ali & Bharat Solanki joined the investigation who were also examined in the case and their statement u/s 180 BNSS were recorded. In their statement they also alleged that Ali Khumeni, his friend Sayed Raza@Alaik and others are involved in this racket. Victim Murtaza Ali also stated that accused Sayeed Raza@alaik and Ali Khumeni have taken Rs 70000 in the name of job and also stated that Ali Khumeni also works as HR in this center. Victim Murtaza Ali also provided the payment proof done to accused Ali Khumeni the present applicant.

Chargesheet against the accused Ali Khumeni has been filed, and investigation on the part of remaining persons is still continued u/s 193(9) BNSS.

Specific role of accused Ali Khumeni and grounds to oppose the Bail Application.

1. The accused, Ali Khumeni, has been found to be involved in an intricate network operated by Chinese individuals in Cambodia. This network trafficks Indian citizens under the guise of employment and subsequently forces them to work in fraudulent investment centers to deceive Indian nationals. The accused Ali Khumeni is alleged to have served as an HR personnel in the fake investment center, working on a salary with additional commission for recruiting manpower from India.

2. On the instance of accused Ali Khumeni, whatsapp chats have been recovered from his mobile phone. In these whatsapp chats he is in conversation with co-accused persons and also facilitating in transportation of Indian person for getting job in alleged fake investment center.

3. On instance of the accused, Ali Khumeni, a Telegram chat from a group containing multiple individuals with Chinese names and Telegram IDs was also recovered. In this group, members were This is a digitally signed order.

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4. Whatsapp chats with the complainant, Ashwani, have been recovered from the accused's mobile phone, establishing a connection between them. Similar chats were also retrieved from the complainant Ashwani's phone, in which the accused, Ali Khumeni, was seen facilitating the complainant's recruitment in Dubai.

5. The passport of the accused, Ali Khumeni, has been seized in this case, confirming his travel to and from Cambodia and Dubai.

6. Three other victims have also made allegations against the accused, Ali Khumeni, stating that he was working as an HR personnel at the alleged center.

7. Other co-accused persons are yet to be arrested. Some of these co-accused persons are still working in Cambodia and Laos. There is a possibility that the accused may threaten the complainant and witnesses, tamper with evidence, evade legal proceedings by absconding, or commit further offence."

(emphasis supplied)

4. Learned counsel appearing on behalf of the applicant submits that the latter is also a victim, who was similarly placed with the complainant and only on account of fact that he could not gather the courage to go the Indian Embassy in Cambodia and get a passport, he has been named as an

accused. It is further submitted that the applicant was arrested on 24.07.2024, and the investigation in the present case stands complete and the chargesheet has been filed before the Court of competent jurisdiction.

5. It is pointed out that as per the status report, that one of the grounds to oppose the bail application is the fact that the other co-accused persons are yet to be arrested and there is a possibility that the applicant may threaten the complainant and witnesses and he may also tamper with the evidence. It is submitted that this opposition is presumptuous in nature as these possibilities This is a digitally signed order.

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6. Per contra, learned APP for the State assisted by learned counsel for the complainant submits that the present applicant was stated to be the Human Resources ('HR') personnel of the company, which recruited the complainants and the other victims in the present. An additional status report authored by Mr. Manoj Kumar, Assistant Commissioner of Police, Cyber Crime Unit, IFSO, Special Cell, New Delhi has been handed up in Court today and the same is taken on record. From the said status report, it is pointed out that complainant-Ashwani Kumar had travelled from Delhi to Dubai on 27.03.2024 and was received by the present applicant after which he was employed in a fake investment centre in Dubai. It is also recorded therein that on 02.05.2024, the complainant had reached Cambodia along with the present applicant. It is pointed out in the FIR that the complainant travelled from Dubai to Thailand, and then to Cambodia by road, and that the passports of the complainant and other victims were taken at the time when they crossed the border into Cambodia and were kept under continuous surveillance through guards and were not allowed to leave the complex without their permission. It is further submitted that the present applicant, thereafter, came back to India from Cambodia on 30.06.2024 and the complainant in the present case managed to escape from the confines of the concerned people and reached Delhi on 26.07.2024 through an Emergency Passport.

7. Learned APP for the State further submits that the applicant is being This is a digitally signed order.

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8. Heard learned counsel for the parties and perused the records.

9. The complainant in the FIR has given a categoric description of the facts relating to the present applicant. It is stated in the FIR, that the present applicant got the complainant a job of Data Entry in Dubai and on his reaching Dubai, he was given 7 days training in a call centre run by a Chinese national and, thereafter, they were directed not to leave the campus or to talk any person outside from the campus without the permission of employer. It is alleged that the complainant realised that the said call centre was running for cyber frauds targeting Indian Nationals by calling them from mobile numbers belonging to the United Kingdom and when they hesitated in doing so, they were thrashed and threatened. It is alleged that in the meanwhile, while there were some raids on the said call centre, and they were threatened that in case they went out, they would be arrested in Dubai. It is further stated that the complainant was then moved from Dubai to Bangkok, Thailand and, thereafter, they were taken on company's vehicle for 6 hours near the Cambodian border, where their passports were taken, which were never returned to them. As per the investigation, the present applicant was also present at the relevant time while the aforesaid complainant was in Dubai till he travelled to Cambodia. It is further recorded that the complainants have received several threatening messages to harm their family members.

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10. The aforesaid complaint mentions the cases of the other victims, who were friends of the complainant and have been cited as the witnesses in the chargesheet. On a pointed query from learned counsel for the applicant as to the status of the latter in the company recruiting the complainant and other victims, it is submitted that he was also a victim without giving any further details as to how and in which capacity he was associated with the said company to say that he was also a victim.

11. The matter is at the stage of committal before the learned Trial Court. The main complainant and other victims are yet to be examined. In the present case, it has prima facie come on record that the applicant was present all along when the complainant and the other victims were in Dubai as well as when they were taken to Cambodia and kept in confinement. In these circumstances, this Court is of the considered opinion that the complainant and other victims be examined before the learned Trial Court before granting bail to the applicant.

12. In the aforesaid circumstances, the present application is dismissed at this stage and disposed of along with all pending application(s).

13. Needless to state, nothing mentioned hereinabove is an opinion on the merits of the case and any observations made are only for the purpose of the present bail application.

14. Copy of the order be sent to the concerned Jail Superintendent for necessary information and compliance.

15. Order be uploaded on the website of this court forthwith.

AMIT SHARMA, J JULY 9, 2025/bsr/sc This is a digitally signed order.

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